

# STATE OF NEW YORK

4525--A

2025-2026 Regular Sessions

## IN ASSEMBLY

February 4, 2025

Introduced by M. of A. GALLAGHER, STERN, GONZALEZ-ROJAS, JACOBSON, LEVENBERG, SIMON, SIMONE, ROSENTHAL, COLTON, REYES, SHIMSKY, RAGA, CLARK, SEAWRIGHT, FORREST, OTIS, BURDICK, MAMDANI, MEEKS -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommended to said committee

AN ACT to amend the environmental conservation law, in relation to prohibiting the sale and distribution of anti-fogging sprays or wipes containing perfluoroalkyl and polyfluoroalkyl substances

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The environmental conservation law is amended by adding a new section 37-0125 to read as follows:

§ 37-0125. Prohibitions against the sale of anti-fogging sprays or wipes containing perfluoroalkyl and polyfluoroalkyl substances.

1. For the purposes of this section, the following terms shall have the following meanings:

(a) "Anti-fogging sprays or wipes" means any product, including a spray, cloth, wipe or other material, that is intended to prevent condensation on eyeglasses.

(b) "Intentionally added chemical" shall have the same meaning as subdivision four of section 37-0121 of this title.

(c) "Manufacturer" means a person, firm, association, partnership or corporation:

(i) that produces or whose brand name is affixed to anti-fogging sprays or wipes; or

(ii) in the case of anti-fogging sprays or wipes that were imported into the United States, "manufacturer" means the importer or first domestic distributor of such anti-fogging sprays or wipes if no person who is a manufacturer within the meaning of subparagraph (i) of this paragraph has a presence in the United States.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (d) "Perfluoroalkyl and polyfluoroalkyl substances" or "PFAS  
2 substances" means a class of fluorinated organic chemicals containing at  
3 least one fully fluorinated carbon atom.

4 2. After December thirty-first, two thousand twenty-six, no person  
5 shall sell or offer for sale in this state anti-fogging sprays or wipes  
6 containing perfluoroalkyl and polyfluoroalkyl substances as inten-  
7 tionally added chemicals or that contain perfluoroalkyl and polyfluoro-  
8 alkyl substances at or above a level that the department shall establish  
9 in regulation.

10 3. No person that sells or offers for sale any anti-fogging sprays or  
11 wipes shall be held in violation of this section if they can show that  
12 they relied in good faith on the written assurance of the manufacturer  
13 of such product that such product met the requirements of this section.  
14 Such written assurance shall take the form of a certificate of compli-  
15 ance stating that such product is in compliance with the requirements  
16 of this section. The certificate of compliance shall be signed by an  
17 authorized official of the manufacturer.

18 4. In addition to any other applicable penalties, it shall be a  
19 violation of this section to provide a certificate of compliance as  
20 contemplated by subdivision three of this section when the applicable  
21 anti-fogging sprays or wipes do not satisfy the prohibitions on the  
22 presence of perfluoroalkyl and polyfluoroalkyl substances set forth in  
23 subdivision two of this section.

24 § 2. Section 71-3703 of the environmental conservation law is amended  
25 by adding a new subdivision 8 to read as follows:

26 8. Any person who violates any of the provisions of, or who fails to  
27 perform any duty imposed by section 37-0125 of this chapter or any rule  
28 or regulation promulgated pursuant thereto, shall be liable for a civil  
29 penalty not to exceed one thousand dollars for each day during which  
30 such violation continues, and in addition thereto, such person may be  
31 enjoined from continuing such violation. Such person shall for a second  
32 violation be liable to the people of the state for a civil penalty not  
33 to exceed two thousand five hundred dollars for each day during which  
34 such violation continues.

35 § 3. This act shall take effect immediately. Effective immediately,  
36 the addition, amendment and/or repeal of any rule or regulation neces-  
37 sary for the implementation of this act on its effective date are  
38 authorized and directed to be made and completed on or before such  
39 effective date.